



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: UDC-24-64 | Archer Complex
Date: May 13, 2024

Background:

The item for consideration is an *Outside User Agreement*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction 5/13/2024
- Public Services Committee 5/21/2024
- Consideration 5/28/2024

Attachments:

1. Resolution
2. Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING SANITARY SEWER SERVICE, BY OUTSIDE USER AGREEMENT, FOR LARAMIE COUNTY, FOR THE PROPERTY KNOWN AS THE ARCHER COMPLEX (SOUTH OF THE I-80 AND ARCHER PARKWAY INTERCHANGE)."

WHEREAS, Laramie County is the owner of the property in Laramie County, Wyoming, known as the Archer Complex, more specifically described as:

14-65: TRACT A: A PARCEL OF LAND IN SEC 27 & 28, DESC AS: BEG AT THE SW CORNER OF SAID SEC 28 BEING MONUMENTED BY THE ORIGINAL GLO PINK GRANITE STONE; TH N 00 DEG 21' 57" E, ALONG THE LINE BETWEEN SECS 28 & 29, 1763.76' TO A PNT ON THE SOUTHERLY R/W LINE OF I-80 FROM WHICH A STANDARD WYO DOT R/W MONUMENT BEARS S 77 DEG 27' 36" W, 0.13'; TH N 77 DEG 27' 36" E, ALONG SAID SOUTHERLY R/W LINE, 106.03' TO THE BEG OF A CURVE TO THE RIGHT BEING MONUMENTED BY A STANDARD WYDOT R/W MONUMENT; TH, ALONG THE ARC OF SAID CURVE TO THE RIGHT, 4254.49', SAID CURVE HAVING A RADIUS OF 16,988.76', A CENTRAL ANGLE OF 14 DEG 20' 55", AND A CHORD WHICH BEARS N 62 DEG 54' 36" E, 4243.38' TO A PNT BEING MONUMENTED BY A STANDARD WYDOT R/W MONUMENT; TH CONTINUING EASTERLY ALONG SAID SOUTHERLY R/W LINE OF I-80 THE FOLLOWING 10 COURSES: TH N 80 DEG 48' 21" E, 400.42' TO A PNT BEING MONUMENTED BY A STANDARD WYDOT R/W MONUMENT; TH S 88 DEG 06' 58" E, 693.90' TO A PNT BEING MONUMENTED BY A STANDARD WYDOT R/W MONUMENT; TH N 74 DEG 43' 52" E, 269.19' TO A PNT BEING MONUMENTED BY A STANDARD WYDOT MONUMENT, TH S 00 DEG 22' 35" W, 364.50' TO A PNT MONUMENTED BY A 5/8"X24" REBAR WITH A 2" ALUMINUM CAP STAMPED "PELS 2613"; TH S 89 DEG 24' 00" E, ALONG A LINE ALSO COMMON TO THE NORTHERLY LIMIT OF THE ARCHER SUBSTATION ACCESS RD, 50.00' TO A PNT ON THE LINE BETWEEN SECS 27 & 28; TH S 89 DEG 24' 00" E ALONG SAID COMMON LINE, 50.00' TO A PNT BEING MONUMENTED BY A 5/8"X24" REBAR WITH A 2" ALUMINUM CAP STAMPED "PELS 2613"; TH N 00 DEG 22' 35" E, 392.89' TO A PNT BEING MONUMENTED BY A STANDARD WYDOT R/W MONUMENT; TH N 74 DEG 44' 20" E, 237.38' TO A PNT BEING MONUMENTED BY A STANDARD WYDOT R/W MONUMENT; TH N 60 DEG 22' 42" E, 1024.27' TO A PNT BEING MONUMENTED BY STANDARD WYDOT R/W MONUMENT SAID PNT ALSO BEING THE BEG OF A CURVE TO THE RIGHT; TH, ALONG THE ARC OF SAID CURVE TO THE RIGHT, 3404.17', SAID CURVE HAVING A RADIUS OF 16,988.73', A CENTRAL ANGLE OF 11 DEG 28' 52", AND A CHORD WHICH BEARS N 84 DEG 49' 27" E, 3398.48' TO A PNT BEING MONUMENTED BY A STANDARD WYDOT R/W MONUMENT; TH S 89 DEG 26' 13" E, 714.51' TO A PNT ON THE LINE BETWEEN SECS 26 & 27 BEING MONUMENTED BY A 5/8"X24" REBAR WITH A 2" ALUMINUM CAP STAMPED "PELS 2613"; TH S 00 DEG 24' 02" W, DEPARTING SAID SOUTHERLY R/W LINE OF I-80, ALONG THE LINE BETWEEN SAID SECS 26 & 27, 2155.95' TO THE E 1/4 COR OF SEC 27 BEING MONUMENTED BY THE

ORIGINAL GLO PINK GRANITE STONE; TH S 00 25' 28" W, CONTINUING ALONG SAID SEC LINE, 1871.41' TO A PNT BEING MONUMENTED BY A 5/8"X24" REBAR WITH A 2" ALUMINUM CAP STAMPED "PELS 2613"; TH N 89 DEG 35' 30" W, ALONG THE SOUTH LINE OF THE NORTH 66.66 AC OF THE S1/2 S1/2 OF SD SEC 27, 5254.95' TO A PNT ON THE LINE BETWEEN SECS 27 & 28 SD PNT BEING MONUMENTED BY A 5/8"X24" REBAR WITH A 2" ALUMINUM CAP STAMPED "PELS 2613"; TH N 89 DEG 33' 53" W, ALONG THE SOUTH LINE OF THE NORTH 33.33 AC OF THE S1/2 SE1/4 OF SAID SEC 28, 2633.49' TO A PNT ON THE EAST LINE OF THE SW1/4 OF SD SEC 28 BEING MONUMENTED BY A 5/8"X24" REBAR WITH A 2" ALUMINUM CAP STAMPED "PELS 2613"; TH S 00 DEG 21' 20" W, ALONG SAID EAST LINE OF THE SW1/4 OF SEC 28, 766.29' TO THE S1/4 COR OF SAID SEC 28 BEING MONUMENTED BY THE ORIGINAL GLO PINK GRANITE STONE; TH N 89 DEG 47' 58" W, ALONG THE LINE BETWEEN SECS 28 & 33, 2637.92' TO THE POB. AND TRACT B, DESC AS: BEG AT THE SE COR OF SAID SEC 27 BEING MONUMENTED BY A 3 1/2" ALUMINUM CAP STAMPED AVIPELS 2617; TH N 89 DEG 39' 01" W, 2625.42' TO THE 1/4 COR OF SECS 27 & 34 BEING MONUMENTED BY A BUREAU OF RECLAMATION BRASS CAP; TH N 00 DEG 02' 25" E, 742.11' TO A PNT BEING MONUMENTED BY A BUREAU OF RECLAMATION BRASS CAP; TH N 89 DEG 09' 09" W, 1318.40' TO A PNT MONUMENTED BY A 2" AL CAP STAMPED PE PLS 2613; TH S 00 DEG 04' 23"E, 755.36' TO A PNT MONUMENTED BY A 2" AL CAP STAMPED PE PLS 2613; TH N 89 DEG 43' 42" W, 1106.81' TO A PNT MONUMENTED BY A 2" AL CAP STAMPED PE PLS 2613; TH N 41 DEG 09' 34" W, 372.05' TO A PNT MONUMENTED BY A 2" AL CAP STAMPED PE PLS 2613; TH N 89 DEG 24' 26" W, 1619.06' TO A PNT MONUMENTED BY A 2" AL CAP STAMPED PE PLS 2613; TH N 18 DEG 20' 33" W, 516.70' TO A PNT MONUMENTED BY A 2" AL CAP STAMPED PE PLS 2613; TH S 89 DEG 33' 53" E, 1826.28' TO A PNT ON THE SEC LINE BETWEEN SEC 33 & 34, SAID PNT MONUMENTED BY A 2" AL CAP STAMPED PE PLS 2613; TH S 89 DEG 35' 30" E, 5254.95' TO A PNT MONUMENTED BY A 2" AL CAP STAMPED PE PLS 2613; TH S 00 DEG 25' 28" W, 763.53' TO THE POB. LESS 41.32 AC LEASED BY THE LARAMIE CO. RIDERS' ASSOC BEING A PARCEL OF LAND SITUATED IN SW 1/4 SEC 28 DESC AS: BEG AT THE SOUTH 1/4 OF SEC 28; TH 00 DEG 20' 31". 627.41' TO THE POB; TH 266 DEG 13' 49", 528.95' TO A PNT; TH 276 DEG 53' 58", 1010.58' TO A PNT; TH 309 DEG 46' 53", 750.38' TO A PNT; TH 55 DEG 27' 33", 815.13' TO A PNT; TH 90 DEG 34' 36", 1440.59' TO A PNT; TH 180 DEG 14' 20", 1014.44' TO THE POB. PLUS (10.72 AC) ARCHER COMPLEX RD AS ESTABLISHED BY RES. NO. 080805-34, BK 2071 PG 575 AND VACATED BY RES. NO. 130507-20, BK 2336 PG 518. LESS (66.70 AC) NEW ROAD R/W WITHIN THE ARCHER COMPLEX AS ESTABLISHED BY RES. NO. 130507-21, BK 2336 PG 1229. ALSO LESS (41.18 AC) IN S1/2 SEC 27 DESC AS: BEG AT THE SOUTH 1/4 COR OF SAID SEC 27; TH N 00 DEG 17' 58" W, 741.89' ALONG A TRACT OF LAND OWNED BY THE USA/US DEPT OF ENERGY, TO THE NE COR OF SAID TRACT OF LAND; TH N 89 DEG 29' 00" W, 617.98' ALONG THE NORTH LINE OF SAID TRACT OF LAND; TH N 00 DEG 31' 00" E, 268.35' TO A PNT ON THE SOUTH R/W LINE OF PROPOSED PRAIRIE CENTER CIRCLE ROADWAY; TH 252.60' ALONG THE ARC OF A NON TANGENT CURVE TO THE LEFT WITH A RADIUS OF 2545.50', AN INTERIOR

ANGLE OF 5 DEG 41' 09" AND A CHORD OF N 66 DEG 50" 24" E, 252.50' ALONG SAID PROPOSED R/W; TH S 89 DEG 59" 09" E, 1799.54' ON A LINE PARALLEL TO THE SOUTH LINE OF THE SE 1/4 OF SAID SEC 27; TH S 00 DEG 00' 51"W, 1115.00' TO THE SOUTH LINE OF SAID SEC 27; TH N 89 DEG 59' 09", 1412.0' ALONG THE SOUTH LINE OF SAID SEC 27 TO THE POB. LESS (3.5 AC) A PARCEL IN THE NW1/4 OF SECTION 27, DESC INTERNALLY FOR ASSESSMENT PURPOSES ONLY, NOT SURVEYED OR CONFIRMED BY A SURVEYOR, NOT A LEGAL DESCRIPTION, NOT TO BE USED FOR TRANSFERENCE OF OWNERSHIP, AS: LARAMIE COUNTY ARCHER COMPLEX RV PARK. LESS 54.3 AC FOR THE HORSE TRIALS AND EQUINE ACTIVITIES PARK IN THE SW1/4 OF SEC 18-T14-R65. ALSO LESS (25 AC, BK 2800 PG 1202) A PARCEL OF LAND IN A PORTION OF THE SW1/4 OF SEC 26 AND A PORTION IN THE SE1/4 SEC 27, DESC AS: COMMENCING AT A FOUND ALUMINUM CAP BEING THE SOUTHEAST CORNER OF SEC 27, SAID POINT BEING THE TRUE POB; TH ALONG THE SOUTH LINE OF SAID SEC 27, S.89 DEG 58'29"W, 1213.29' TO A FOUND ALUMINUM CAP; TH N.00 DEG 00'50"E, 1115.77' TO A FOUND ALUMINUM CAP; TH N.88 DEG 54'44"E, 524.31' TO A POINT; TH S.01 DEG 04'56"E, 380.89' TO A POINT; TH N.88 DEG 48'31"E, 1999.94' TO A POINT ON THE WEST LINE OF THE SE1/4 OF THE SW1/4 OF SAID SEC 26; TH S.00 DEG 00'14"E ALONG SAID SE1/4 OF THE SW1/4 OF SEC 26, 783.18' TO A POINT BEING THE WEST 1/16 CORNER OF SEC 26; TH S.89 DEG 52'46"W, 1317.95' ALONG THE SOUTH LINE OF SAID SEC 26 M/LTO THE POB; 14-65: 54.3 AC IN THE SW1/4 OF SECTION 28.

WHEREAS, Laramie County ("the Applicant") submitted an application to the City of Cheyenne and the Board of Public Utilities ("BOPU") for water and/or sanitary sewer services outside of the corporate limits of the City of Cheyenne for the above-referenced properties;

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, BOPU has reviewed the application submitted by the Applicant, and BOPU and the Applicant will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the applications for sanitary sewer services submitted by the Applicant and has determined that approval is in the best interest of the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the application submitted by the Applicant to BOPU for sanitary sewer services outside of the corporate limits of the City of Cheyenne for the property known as the Archer Complex and more specifically described above, is hereby approved.

BE IT FURTHER RESOLVED, that BOPU and the Applicant are authorized to approve and execute Outside User Agreement(s).

PRESENTED, READ AND ADOPTED this _____ day of _____,
2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MAY 13, 2024

STAFF REPORT

FILE: PUDC-24-64: Archer Complex – Outside User Agreement

REQUEST: An outside user agreement for the provision of sewer to a property outside City limits.

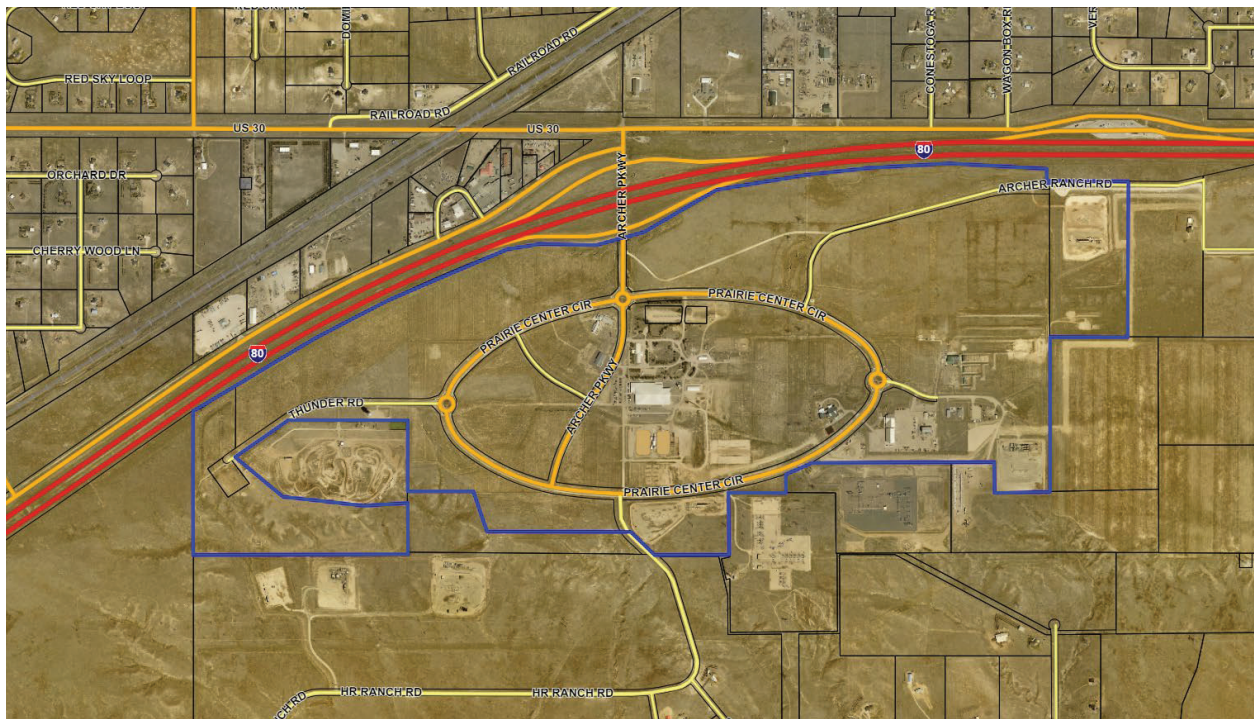
LOCATION: South of the I-80 and Archer Parkway Interchange

APPLICANT: Laramie County

AGENT: Benjamin Nemec, Martin/Martin Wyoming

OWNERS: Laramie County

PREPARED BY: Connor White, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne
- Resolution 3577

BACKGROUND:

The applicant is requesting connection to BOPU sanitary sewer services only for property outside City limits. This property is the Archer Complex, there is currently no existing sewer in the area or other outside user agreements.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Employment / Public and Quasi-Public	County Planned Unit Development (PUD)	Government Facilities
North	Mixed-use Employment / Community Business / Mixed-use Commercial / Urban Transition Residential	County Light Industrial / County Community Business	Commercial / Industrial
South	Agricultural / Rural	County A-2	Single-family Residential
East	No Designation	Unzoned	Single-family Residential
West	Industrial / Agricultural Rural	County Public / City Heavy Industrial	Vacant

The property is currently zoned a PUD Planned Unit Development in the County.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

The request for an outside user agreement has no formal review criteria; however, the following elements should be considered when reviewing outside user agreements:

- BOPU capacity
- Needed infrastructure improvements
- Population served
- Considerations on the effect on future annexation(s)
- Fiscal cost/benefit to the City and the BOPU
- Conformance with the Comprehensive Plan

The requested outside user agreement has minimal impact on BOPU's system capacity. The proposed use of the property includes light and medium density commercial and industrial facilities. The current existing facilities consist of a mix of administrative County owned facilities and the County Fair Grounds. The closest sewer connection is located at either Hutchins Drive or Venture Drive, which is on the north side of I-80 and to the West. This connection can be used or another connection can be proposed.

Property tax would increase, but the City would not have any income from the property tax in the area. The BOPU may charge a higher rate for outside users. The sewer infrastructure will need to be extended to this area as it does not exist already, and Laramie County will be responsible for extending the infrastructure. City police, fire, and sanitation services are not within this area as it is solely within the County, so if this parcel were to come into City limits by itself, it would likely result in a need to extend the services to this area.

The Comprehensive Plan designates this area as Mixed-use Employment – and the proposed use in this location is consistent with that anticipated development pattern.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Conformance with PlanCheyenne is discussed above.

STAFF REVIEW:

Through the review process, the following comments were received:

- BOPU has not received the OUA release form that is required for their approval.

CONCLUSION:

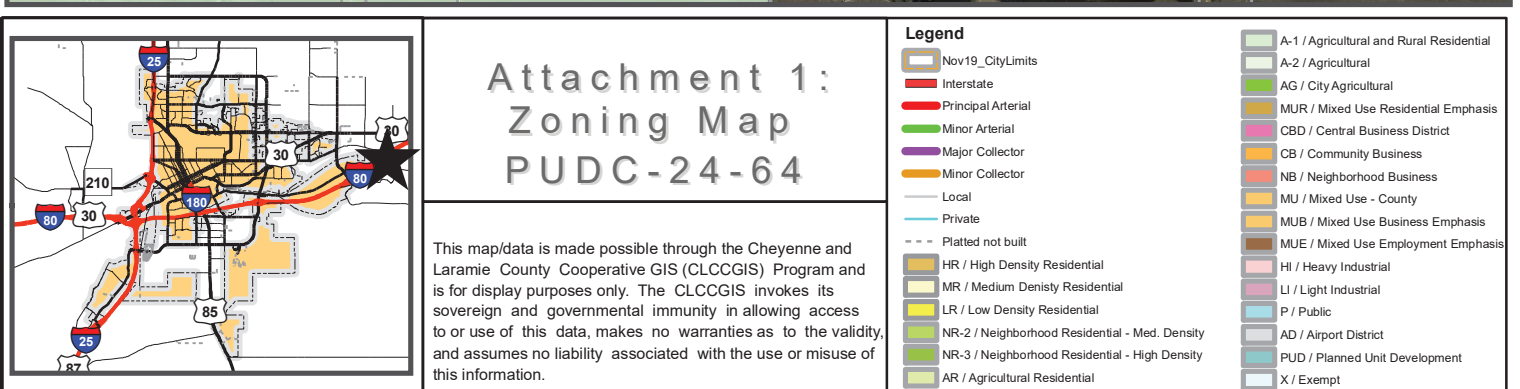
Staff is satisfied that the application is acceptable based on the considerations specific to this request and therefore recommends approval of the outside user agreement.

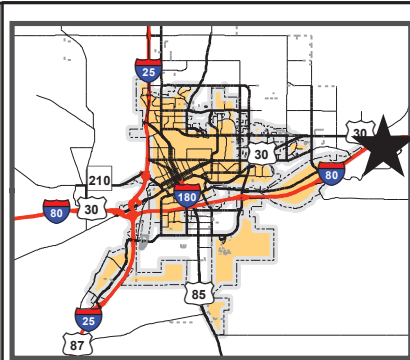
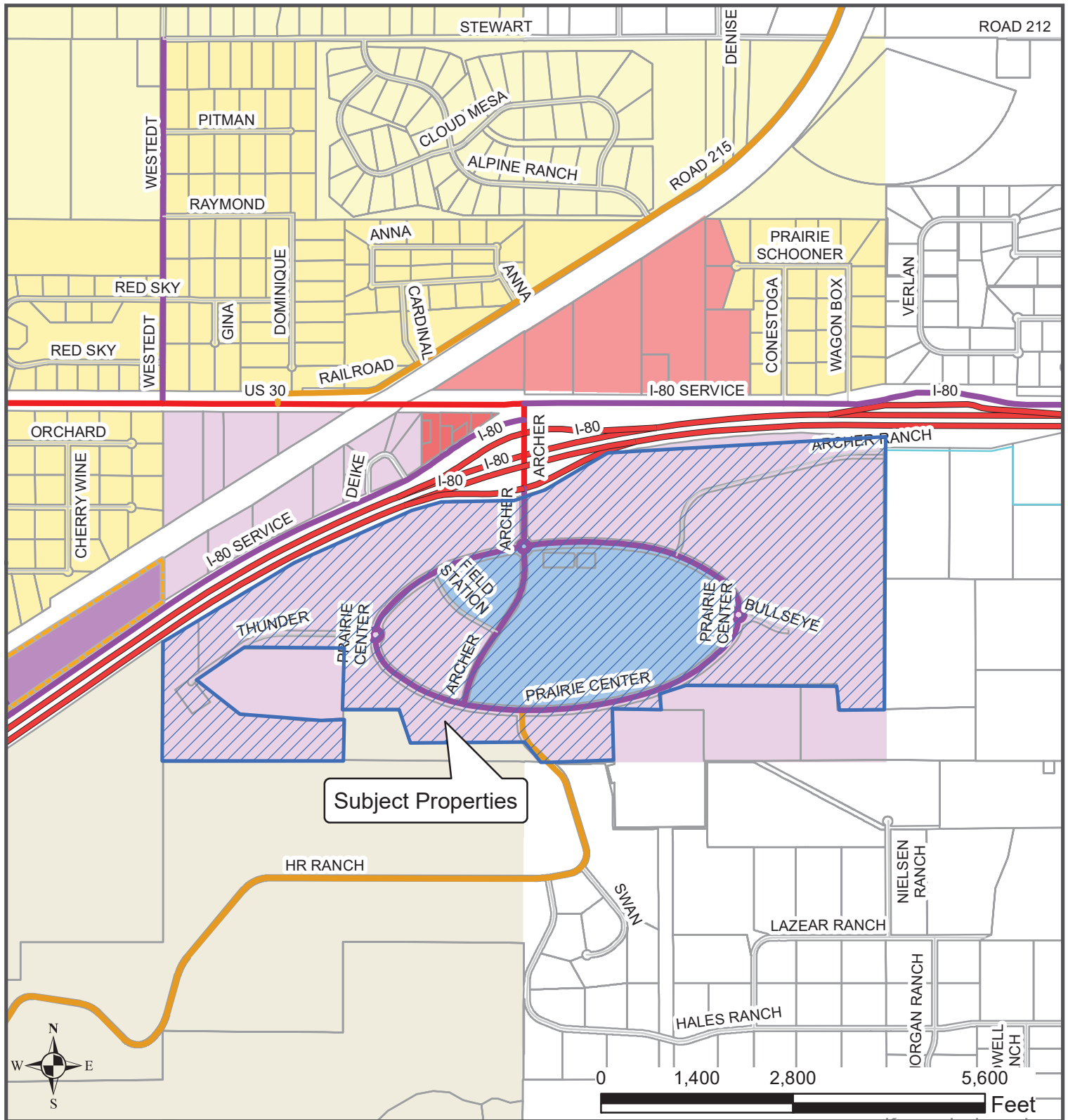
STAFF RECOMMENDATION:

Staff recommends approval of the proposed outside user agreement.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. City Limits Map
4. Application
5. Applicant-submitted proposed site plan



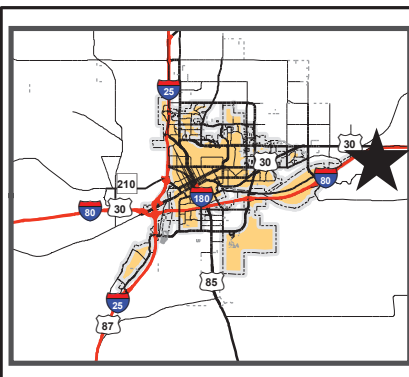
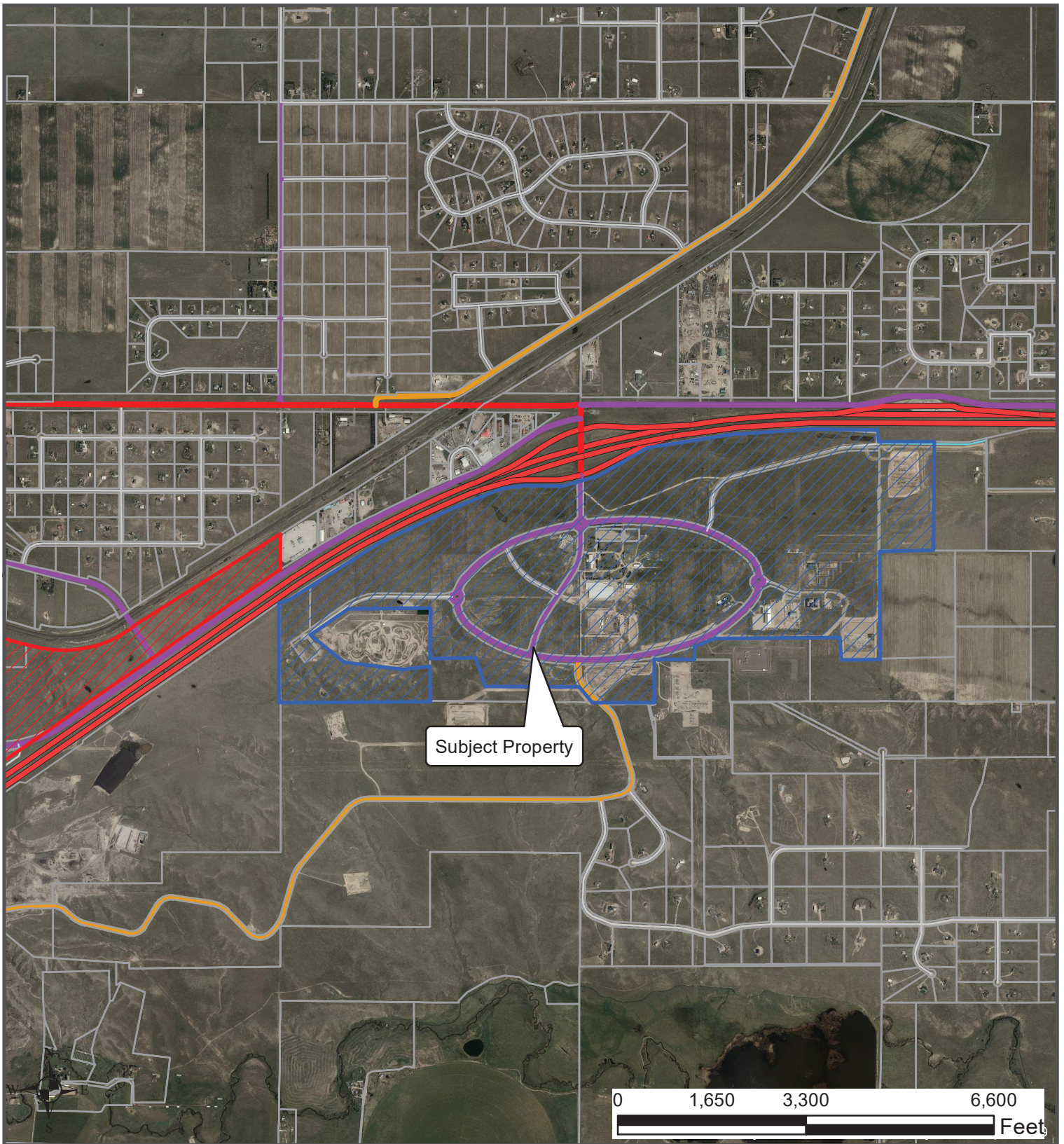


Attachment 2: Land Use Map PUDC-24-64

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Attachment 3: City Limits Archer Complex

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

-  City Limits
-  Interstate
-  Principal Arterial
-  Minor Arterial
-  Major Collector
-  Minor Collector
-  Local
-  Private
-  Platted not built



Cheyenne, WY

5/7/2024

PUDC-24-64

Outside User's

Agreement

Status: Active

Submitted On: 4/9/2024

Primary Location

0

,

Owner

Applicant

Jay Ligocki

307-637-8422 ext. 111

service@mmwyo.com

 6523 Yellowstone Rd
Cheyenne, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Written Statement* ?

Archer Complex - Outside User Agreement

I understand that I may not be eligible for an Outside User's Agreement if the property is close to current City limits.*



Number of connections to the BOPU system proposed*



1

Dwelling units served* ?

0

Anticipated jobs created* ?

0

Review Criteria

BOPU has the capacity to serve.*



The connection(s) proposed have a logical layout.*



Effect of population served (employees or residents).*



Serving the property will not be detrimental to the City's ability to annex in the area.*



The anticipated financial impact to the City and BOPU. This is more than the direct costs or payments, and will include effects like property taxes, sales taxes, maintenance costs, etc.*



The Comprehensive Plan's anticipated use patterns for the area.*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Jay Ligocki

Apr 9, 2024

